The Mountainside

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CDC-CMA Agreement and new Assessments Approved by Membership



CMA Members hear Don Fox explain the schedule for upgrading the water and sewer system.



CMA President Arleigh Greenblat (left) accepts first payment ($25,000) from CDC's Randall Ashelman.

The 1995 agreement between the Coolfont Mountainside Association and Coolfont Development Corporation and a separate proposal for new triennial assessments have been overwhelmingly approved by the CMA membership.

The new agreement with CDC passed by a vote of 96 for the measure and 12 against, and the assessment issue passed by a vote of 94 for, 14 against.

The vote took place through mailed ballots and at a special member meeting held on March 11 at Walter Johnson High School in Bethesda, Maryland.

The agreement calls for CDC to pay our association $110,000 over a 24-month period. The money will be used as part of the funding for a broad program to upgrade and improve our water and sewer system, repair/pave CMA roads, and make other infrastructure repairs and improvements.

The agreement allows the development of 8 new lots to the south of CMA, in the Salmon tract owned by the Ashelmans. The agreement also settles all outstanding issues with CDC resulting from the 1986 agreement.

The new triennial assessment program is part of a long-range financing package for the water-sewer and other infrastructure upgrades, which combines member assessments with the 1995 CDC agreement payments and a bank loan or similar financial instruments.

The total projected cost of upgrades is $365,000, with $110,000 from CDC, a loan up to $150,000, and continuation of this year's assessment for homes, with the allocation of $350 per home and the additional assessment of $120 per lot over a four-year period for the capital improvements.

President's Column

Yogi said it. It's not over 'till its over. Prolific and true. With our legal problems put to rest, we now have to finance and implement a water-sewer upgrade program. Members Fox, Clark and Weinberger have all volunteered to give us a plan. Bob Dowling, our Finance Chair, with assistance from Jim Bradfield will help with some important number crunching as we deal with the Public Service Commission and loan institutions.

Linda Clark is in the middle of a major revision to DACC guidelines with help from Pat Schenk our resident researcher. Mountainside security is being looked into by Rosemary Bigelow and her committee while Renee Jasper and Diane Kaseman are helping by looking at the future of our relationship with the Coolfont Foundation (Renee)and the CMA Recreation Committee (Diane).

Chairperson Carl Bostrom with Board liaison Black will pull together Messrs. Jasper, Silver, Kaseman and Bain for a look at the by-laws, proxy voting and possible changes in the covenants.

Repairs to the swimming pool and tennis courts are being made this year.

Everything goes easier when there is an entire community behind a volunteer effort. We feel that the membership understands the goals and champions each cause. We're trying for quality through systematic approaches to capital outlays, maintenance and planning. So far, so good!

Thanks to everyone!

Arleigh

PLEASE TAKE NOTE:

The **April** meeting of the CMA Board of Directors has been **cancelled**. The next board meeting will be on **Saturday, May 6, in the Fireside Room at Coolfont, beginning at 10:00 a.m.**.

The April Board agenda was to have concentrated on financial planning for the upgrade, but the outcome of ongoing discussions with the West Virginia Public Service Commission will have an effect on that planning, so the board meeting must be postponed until the PSC issues are resolved.

A LETTER TO DON....

CMA Prez Arleigh Greenblat recently sent a note of appreciation to long time CMA member Don Green. Don and Carol are selling "Aerie" after many years with us on the mountainside. A portion of that letter follows, as a tribute to the Greens:

"It goes without saying that CMA is forever in your debt. Your contribution of time and energy will not be forgotten... To volunteer all the hours you contributed is truly notable. You were creative and patient, two qualities we greatly needed. We also appreciated your hospitality during lawyer and arbitration committee meeting days. Opening your home was above and beyond the call of duty. Both you and Carol have contributed to CMA in many ways. I sincerely hope you both will take pleasure in knowing the association is now stronger and more effective as a result of all your efforts. Once again, our sincerest thanks!"

The following legal notice on the new water rates appeared in the Morgan Messenger newspaper on January 25. We reprint it here for your examination.

PUBLIC SERVICE COMMISSION
OF WEST VIRGINIA
Charleston

Entered by the PUBLIC SERVICE COMMISSION OF WEST VIRGINIA, in the City of Charleston on the 6th day of January, 1985.

CASE NO. 95-0005-WS-CN

COOLFONT MOUNTAINSIDE ASSOCIATION, INC., a corporation, Berkeley Springs, Morgan County.

Application for a certificate of convenience and necessity to operate a water and sewer utility on Cold Run Valley Road, Berkeley Springs, Morgan County, and for approval of rates and charges incidental thereto.

NOTICE OF FILING

WHEREAS, on January 5, 1995, Coolfont Mountainside Association, Inc., a corporation, Berkeley Springs, Morgan County, filed an application duly verified for a certificate of convenience and necessity to operate a water and sewer utility in the Cold Run Valley Road area of Berkeley Springs, Morgan County; and

WHEREAS, Coolfont Mountainside Association, Inc., is requesting approval of the following tariff once certification is obtained from the Public Service Commission:

Applicable to all home owners:

Availability of Service

Available to all home owners as general domestic service.

Rate:

A flat rate of $23.00 per 1,000 gallons quarterly for water and sewer service combined.

Delayed Payment Penalty:

The above tariff is net. On all accounts not paid in full within thirty (30) days of date of bill, ten percent (10%) will be added to the net amount shown, This delayed payment penalty is not interest and is only to be collected once for each bill where it is appropriate.

Service Connection Fee:

For connection to water main - $455.00.

Pursuant to Section 24-2-11, **West Virginia Code**, IT IS ORDERED that Coolfont Mountainside Association, Inc., a corporation, give notice of the filing of said application by publishing a copy of this order once in a newspaper, duly qualified by the Secretary of State, published and of general circulation in Morgan County, making due return to this Commission of proper certification of publication immediately after publication. Anyone desiring to make objection to said application must do so in writing, within thirty (30) days after the publication of this notice, to P.O. Box 812, Charleston, West Virginia 25323.

IT IS FURTHER ORDERED that if no protests are received within said 30-day period, the Commission may waive formal hearing and grand the application of Coolfont Mountainside Association, Inc., based on the evidence submitted with said application and its review thereof.

A true copy, Teste:

Howard M. Cunningham
Executive Secretary 1-25-1p.m.